

KALE REALTY

THE MLS JUST **SUED** BEFORE A BROKERAGE COULD SUE IT.

If you don't know your cooperation policy, you're not ready for what this case decides.

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**A REGIONAL MLS
ASKED A FEDERAL
COURT TO
PERMANENTLY
BLOCK A MAJOR
BROKERAGE'S
ANTITRUST CLAIM.**

Before the brokerage could even file one.

FILING FIRST ISN'T DEFENSE. IT'S PICKING THE BATTLEFIELD.

On October 6, 2026, CRMLS (California Regional MLS) asked a federal court in New York to rule that its listing-cooperation rules are lawful and to permanently stop the brokerage it's in a dispute with from ever bringing an antitrust claim against those rules. Racing to court first means CRMLS picks the venue, the framing, and the timeline before the other side can. Whatever court rules on this sets a template every regional MLS, including the one you work off of every day, will be watching.

WHAT TO DO WITH YOUR OWN COOPERATION POLICY THIS MONTH:

- 1 Pull up your MLS's actual cooperation rules.**
Not what you assume they say. The document itself.
- 2 Know what counts as withholding a listing from cooperation**
, and what your MLS's rule requires you to do before you can hold one back.
- 3 Ask your broker where they stand**
if this case or one like it ever touches your own MLS. A policy you learn about mid-dispute is a policy you learn too late.

THE TAKEAWAY

**KNOW THE RULE
BEFORE A LAWSUIT
WRITES A NEW ONE
FOR YOU.**

This is still being decided. Your own cooperation policy isn't.